

IT Act 2000

Information Technology Act, 2000

Information Technology (IT) Act, 2000

User Query :

My personal email account was accessed without my permission after I clicked a suspicious link. The person downloaded private documents, changed my password and later shared some confidential files with other people. I was locked out of the account until I recovered it. What legal provisions may apply to the unauthorized access and disclosure of my information?

Job Id. : qwen3-30b/Scenario 11/Information Technology (IT) Act, 2000

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AI-Powered Legal Intelligence Platform

APPLICABLE SECTIONS

Section 43

— Penalty and compensation for damage to computer, computer system, etc.

The email account was accessed without permission, data was downloaded and the password was changed.

Section 66

— Computer related offences

Applies if those **section 43** acts were done dishonestly or fraudulently.

Section 66C

— Punishment for identity theft

Relevant if the attacker fraudulently/dishonestly used the victim's password or another protected unique identification feature.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- Sections 43 and 66 are the core provisions for unauthorised access and related acts. **Section 66C** may be added if stolen credentials were actually used. A generic confidentiality/disclosure provision should not be substituted for the hacking elements.

✓ STRENGTHS & RIGHTS

- The facts expressly include unauthorised access, downloading and password modification.

✗ RISKS & OBLIGATIONS

- Do not add a lawful-contract disclosure offence merely because confidential files were later shared by the hacker.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Preserve login alerts, recovery emails, headers, access logs and copies of disclosed files.

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